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TENTATIVE RULINGS
September 9, 2026

#	Case Name	Tentative
1.	<u>30-2021-01226377-CU-BC-NJC</u> Young vs. Gunlei Corporation	Before the Court is a Motion to Compel Deposition Testimony and Document Production, and Sanctions, brought by plaintiffs William Young and Jennifer Young (“Plaintiffs”) against defendants Egreen Transport Corporation (“Egreen”), Hong Chen, Jing Song, Yu Wang, Wen Chen, and Elaine Huang (collectively, “Defendants”). ROA 769. Plaintiffs seek an order, pursuant to California Code of Civil Procedure Sections 2025.450 and 2025.480, compelling Defendant Egreen to designate and produce its Person(s) Most Knowledgeable (“PMK”) for deposition and compelling Defendants Hong Chen, Jing Song, Yu Wang, Wen Chen, and Elaine Huang to appear and testify at noticed depositions and to produce documents requested therein. ROA 769, p.2.

		Additionally, Plaintiffs seek an order, pursuant to California Code of Civil Procedure Sections 2025.450 and 2025.480, imposing monetary discovery sanctions upon Egreen, Adli Law Group P.C., and Dariush G. Adli, Esq., jointly and severally, in the amount of \$7,835, for the costs incurred by Plaintiffs in bringing this Motion. The Court notes that no opposition or reply was filed. Accordingly, in making its findings, the Court considers only Plaintiffs' declaration submitted in support of the motion. ROA 769, p. 11. Motions to Compel Deposition Testimony and Production Under California Code of Civil Procedure Section 2025.450, when a party to the action or a party's agent fails to appear for examination after having received proper deposition notice, and without having served a valid objection under Section 2025.410, the party giving notice may move for an order compelling the deponent's attendance, testimony, and production of documents. Cal. Civ. Proc. Code § 2025.450(a). All motions to compel a deponent to appear or proceed with deposition, or to produce documents, electronically stored information, or tangible things for inspection must "be accompanied by a meet and confer declaration" that states that the moving party "has contacted the deponent to inquire about the nonappearance" or failure to produce. Cal. Civ. Proc. Code § 2025.450(b)(2). The meet and confer declaration must satisfy the statutory requirements of California Code of Civil Procedure Section 2016.040 only when a party seeks a deponents <i>further</i> responses to questions posed at deposition. <i>Id.</i> Here, on November 12, 2025, Plaintiffs served deposition notices and accompanying requests for the production of documents upon Defendants by mail. ROA 796, Exh. 1. Plaintiff's notices set the depositions of Defendants Egreen's PMK, Yu Wang, and Elaine Huang for December 4, 2025, and Defendants Hong Chen, Jing Song, and Wen Chen for December 3, 2025. <i>Id.</i> On December 2, 2025, Defendants' counsel unilaterally
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	rescheduled the depositions of Defendants to December 12, 2025. ROA 796, pp. 11, 52. On December 9, 2025, Defendants served Objections to Plaintiffs' Deposition Notices of Defendants Egreen, Yu Wang, and Elaine Huang. ROA 796, p.67. Defendants did not appear for deposition or produce the documents requested in Plaintiffs' deposition notices. ROA 796, p. 11 The Court finds that Plaintiffs' notices were properly served, that Defendants failed to appear to the properly noticed depositions, that Defendants neither provided testimony nor produced the requested documents, and that Plaintiffs' Declaration in Support of their Motion satisfies the statutory meet and confer requirement. Accordingly, because Defendant did not raise objections to the deposition notices of Hong Chen, Jing Song, and Wen Chen, Plaintiffs are presumptively entitled to compel them to appear for deposition and to produce the requested documents. Valid Objections to Deposition Notice Valid objections to deposition notice must go to error or irregularity of the notice. <i>See</i> Cal. Civ. Proc. Code § 2025.410(a). Further, serving a code compliant objection to a deposition notice does <i>not</i> automatically stay the deposition absent a motion by the objecting party to stay or quash the deposition. <i>See</i> Cal. Civ. Proc. Code § 2025.410(c). A "plaintiff may serve a deposition notice without leave of court on any date that is 20 days after the service of the summons on, or appearance by, any defendant." Cal. Civ. Proc. Code § 2025.210(b). A court may grant a plaintiff leave to serve a deposition notice on an earlier date, either on motion or without notice, for good cause shown. <i>Id.</i> Oral depositions must be scheduled at least ten (10) days after service of the deposition notice, unless shortened or extended by the court for good cause shown. Cal. Civ. Proc. Code 2025.270.
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	The deposition of a natural person must be taken, at the noticing party's option, at a place that is <i>either</i> within seventy-five (75) miles from the deponent's residence <i>or</i> anywhere within the county where the action is pending that is also within 150 miles of the deponent's residence. Cal. Civ. Proc. Code 2025.250(a). A court may exercise its discretion to permit the deposition of a natural person at a place more distant than that permitted under Section 2025.250, upon motion accompanied by a meet and confer declaration and after considering "any factor tending to show whether the interests of justice will be served" in doing so. Cal. Civ. Proc. Code § 2025.260(a), (b). A party that is served with a deposition notice that does not comply with the provisions of Section 2025.210, outlined above, waives any error or irregularity unless they serve a written objection specifying the error or irregularity at least three (3) days before the scheduled deposition upon the noticing party and all other parties served with notice of the deposition. Cal. Civ. Proc. Code § 2025.410(a), (b). Here, the Court finds that none of Defendants' objections raised to the deposition notices of Defendants Egreen, Yu Wang, and Elaine Huang are valid objections to a deposition notice. Accordingly, Defendants have waived any objection to said notices on the grounds of error or irregularity. Accordingly, Plaintiffs are entitled to an order compelling the deposition testimony of Egreen's PMK, Yu Wang, and Elaine Huang. Sanctions re: Motions to Compel Discovery The California Code of Civil Procedure authorizes the imposition of various sanctions for misuse of the discovery process, including, but not limited to, "[making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery." Cal. Civ. Proc. Code § 2023.010(h). California Code of Civil Procedure Section 2025.480 imposes mandatory monetary sanctions "against any party . . . who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or
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		that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code § 2025.480(j). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, Defendants do not offer, and the Court does not find, any substantial justification for Defendants’ failure to appear to Plaintiffs’ properly noticed deposition or Defendants’ failure to raise valid objections to Plaintiffs’ notices. Additionally, the Court finds no reason why the imposition of monetary discovery sanctions upon Defendants for discovery misuse would result in any prejudice to Defendants. Accordingly, sanctions are mandatory and just. Proper Assignment of Sanctions Liability California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts <i>shall</i> impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the
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	motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) <i>with Kwan Software Eng'g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. <i>See Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney's declarations shows attorney attempted to convince client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>See generally Ghanooni, supra</i>, 20 Cal. App. 4th at 260-261. If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. <i>See generally Cornerstone, supra</i>, 56 Cal. App. 5th at 799. Here, the record before the Court is unequivocal that Defendants' failure to appear to Plaintiffs' properly noticed deposition is not attributable to client misconduct. Accordingly, the liability for sanctions for Defendants' discovery misuse lies squarely with Defendants' counsel. Determining a Reasonable Sanctions Amount Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th at 790-91 (compulsion, causation, and reasonableness). "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial
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	court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i>, (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added). The Court has already addressed the principles of compulsion and causation above; thus, only reasonableness remains. Having considered Plaintiffs’ declaration and calculation of the costs incurred in bringing this motion, the Court finds that Plaintiffs are entitled to the reasonable sanctions award of \$3,980. Accordingly, the Court issues the following Orders: Plaintiffs’ Motion to Compel the Deposition of Defendants Egreen Transport Corporation, Hong Chen, Jing Song, Yu Wang, Wen Chen, and Elaine Huang is GRANTED and Defendants are ORDERED to appear for deposition and provide the testimony and document production noticed in Plaintiffs’ Deposition Notices dated November 12, 2025, at a date and time to be determined by the parties not exceeding thirty (30) days from receiving notice of this Order. Additionally, the Court IMPOSES monetary discovery sanctions upon Defendants’ counsel of record at the time of the non-compliance, Adli Law Group P.C., in the amount of \$3,980, due and payable to Plaintiffs, no later than thirty (30) days from receipt of notice of this Order. Clerk shall give notice.
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